

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
Case No. CV2022-1963

Hearing Date: **March 13, 2026** **Department Eight** **9:00 a.m.**

Defendant Michael Steven Olivas' motion to strike:

Defendant Michael Steven Olivas' request for judicial notice is **DENIED**. (Evid. Code, §§ 452, 453.) Defendant did not make his request for judicial notice in a separate document. (Cal. Rules of Court, rule 3.1113(l) ["Any request for judicial notice must be made in a separate document..."].) Further, defendant made this request in the reply, not his moving papers. (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537 ["The general rule of motion practice...is that new evidence is not permitted with reply papers"].)

The Court proposes to take judicial notice of the following records in its own file:

1. The Court's January 25, 2023, minute order;
2. The Court's May 8, 2025, minute order;
3. The Court's August 14, 2025, minute order; and
4. Plaintiff Xinyao Zhou's complaint, filed November 10, 2022.

(Evid. Code, §§ 452, subd. (d), 455, subd. (a).) The Court shall afford each party reasonable opportunity before the cause is submitted for decision by the Court to present to the Court information relevant to: (1) the propriety of taking judicial notice of the matter; and (2) the tenor of the matter to be noticed. (Evid. Code, § 455, subd. (a).)

Defendant's motion to strike plaintiff's third amended complaint is **GRANTED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., §§ 435, 436, subd. (b).) "It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all." (*Community Water Coalition v. Santa Cruz County Local Agency Formation Com.* (2011) 200 Cal.App.4th 1317, 1329.) On January 25, 2023, the Court granted plaintiff leave to amend as to defendant Michael Steven Olivas and the following causes of action: breach of contract (second); false promise (seventh); concealment (eighth); conspiracy (ninth); and intentional misrepresentation (eleventh).

However, plaintiff's third amended complaint ("TAC") asserts existing causes of actions against defendants not previously named as to those causes of action and adds allegations as to causes of action which the Court did not permit leave to amend. (See, e.g., Complaint, pp. 16, 18-21, 24, & 26; TAC, pp. 11-13, 16-23, 34-36, & 39-41; *Community Water Coalition, supra*, 200 Cal.App.4th at p. 1329; see also *Gross v. Dep't of Transp.* (1986) 180 Cal.App.3d 1102, 1106 [a plaintiff may not amend a complaint to add a new party without leave of court after the sustaining of a demurrer].) Plaintiff did not obtain leave of court to amend her complaint outside of the Court's January 25, 2023, May 8, 2025, and August 14, 2025, orders. (See Code Civ. Proc., § 473, subd. (a)(1).)

As plaintiff improperly amended her complaint, plaintiff's TAC, filed on September 8, 2025, is **STRICKEN**, in its entirety. (Code Civ. Proc., § 436.) The Court does not grant plaintiff leave to amend. (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 994.) This Court struck plaintiff's previous two amended complaints, based on plaintiff's failure to comply with the January 25, 2023, order, and each time permitted plaintiff to amend her complaint. (*Ibid.*) Despite these opportunities, plaintiff continues to not comply with this Court's order. (See *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227 ["Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given"]; see also Code Civ. Proc., § 436, subd. (b).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Defendant Michael Steven Olivas' demurrer, defendant David Fischbach's demurrer, and defendant Ashok Patel's demurrer and motion to strike:

Defendant Michael Steven Olivas' demurrer to third amended complaint, defendant David Fischbach's demurrer to third amended complaint, and defendant Ashok Patel's demurrer to plaintiff's third amended complaint and motion to strike portions of plaintiff's third amended complaint are **DROPPED FROM CALENDAR AS MOOT** because the Court is striking the pleading to which these motions are directed. (*Wilson v. L. A. County Civil Service Com.* (1952) 112 Cal.App.2d 450, 452-453.)

Plaintiff's motion to vacate:

Plaintiff Xinyao Zhou's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, 453.)

The Court proposes to take judicial notice of the following records in its own file:

1. Plaintiff's motion to vacate attorney's fee orders, filed May 20, 2025; and
2. The Court's July 28, 2025, order after hearing (motion to vacate attorney's fees orders).

(Evid. Code, §§ 452, subd. (d), 455, subd. (a).) The Court shall afford each party reasonable opportunity before the cause is submitted for decision by the Court to present to the Court information relevant to: (1) the propriety of taking judicial notice of the matter; and (2) the tenor of the matter to be noticed. (Evid. Code, § 455, subd. (a).)

Plaintiff's motion to vacate attorney fee award and charging order based on extrinsic fraud is **DENIED**. (Code Civ. Proc., § 473, subd. (d).) Plaintiff filed a previous motion to vacate attorney fee award, pursuant to Code of Civil Procedure section 473(d). On July 28, 2025, the Court denied plaintiff's previous motion to vacate. Therefore, this Court construes plaintiff's motion as a renewed motion to vacate. (*Sole Energy Co. v. Petrominerals Corp.* (2005) 128 Cal.App.4th 187, 193; see also *Deauville Restaurant, Inc. v. Superior Court* (2001) 90 Cal.App.4th 843, 848-849; Code Civ. Proc., § 1008, subd. (b).) With her motion, plaintiff did not submit a declaration stating to what judge the previous application was made. (Code Civ. Proc., § 1008, subd. (b); see Zhou decl.) Further, even plaintiff's declaration contained the required information, plaintiff has not shown that her former attorney's actions created a

fraudulent order such that it should be set aside under section 473(d). (*Falahati v. Kondo* (2005) 127 Cal.App.4th 823, 833; see also *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73-74.)

The notice of motion provides notice of this Court's tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Hotel Winters' motion to foreclose charging order:

Defendant and judgment creditor Hotel Winters, LLC's ("Hotel Winters") objections to plaintiff Xinyao Zhou's supplemental opposition and second supplemental opposition are **SUSTAINED**. The Court does not consider plaintiff's supplemental opposition, filed on February 4, 2026, and second supplemental opposition, filed on February 24, 2025. (See Code Civ. Proc., § 1005, subd. (b).)

Plaintiff Xinyao Zhou's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, 453.)

Hotel Winters' motion to foreclose charging order is **GRANTED**. (Corp. Code, § 17705.03; Code Civ. Proc., §§ 708.310, 708.320.) Hotel Winters has shown that distributions under its charging order will not pay the judgment debt within a reasonable time. (Corp. Code, § 17705.03, subd. (b)(3); Mehta decl., ¶¶ 5-9; Exhibits A & B; Barmaper decl., ¶¶ 1-8; see also Zhou decl., ¶ 48, Exhibit A, p. 5.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
 Case No. CV2023-0312

Hearing Date: **March 13, 2026** **Department Eight** **9:00 a.m.**

Plaintiff Xinyao Zhou’s motion for relief from order denying motion to compel and imposing sanction is **DENIED**. (Code Civ. Proc., § 473, subd. (b).) First, as to plaintiff’s request for relief under section 473(b), plaintiff has failed to establish that this Court may relieve her of its January 20, 2026, order based on her misunderstanding of the law as a self-represented litigant. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543 [“Pro. per. litigants are held to the same standards as attorneys”]; see also *McClain v. Kissler* (2019) 39 Cal.App.5th 399, 416; Zhou decl., ¶¶ 19-23 & 27, Exhibit B.) Second, as to plaintiff’s argument that the imposed sanction is disproportionate and unjust, plaintiff does not provide legal authority for the proposition that this Court has the power to vacate or reduce these sanctions. (See *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73-74.) Finally, as to plaintiff’s request for relief under section 1008(a), plaintiff’s declaration does not contain the required information. (Code Civ. Proc., § 1008, subd. (a).) Specifically, plaintiff’s declaration does not state: (1) to what judge the previous application was made; and (2) what new or different facts, circumstances, or law are claimed to be shown. (*Ibid.*; see generally Zhou decl.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.